

“The essential elements of a cause of action for battery are: (1) defendant touched plaintiff, or caused plaintiff to be touched, with the intent to harm or offend plaintiff; (2) plaintiff did not consent to the touching; (3) plaintiff was harmed or offended by defendant’s conduct; and (4) a reasonable person in plaintiff’s position would have been offended by the touching.” *So v. Shin* (2013) 212 Cal.App.4th 652, 669 [citing CACI 1300].

“In an action for civil battery the element of intent is satisfied if the evidence shows defendant acted with a ‘willful disregard’ of the plaintiff’s rights.” *Ashcraft v. King* (1991) 228 Cal.App.3d 604, 613, internal citation omitted.) “As a general rule, California law recognizes that ‘. . . every person is presumed to intend the natural and probable consequences of his acts.’ Thus, a person who acts willfully may be said to intend ‘ “ ‘those consequences which(a) represent the very purpose for which an act is done (regardless of the likelihood of occurrence), or (b) are known to be substantially certain to result (regardless of desire).’ ” ’ The same definition is applied to many intentional torts.” *Gomez v. Acquistapace* (1996) 50 Cal.App.4th 740, 746, internal citations omitted.

Sysco argues that there is no evidence that its delivery driver Erik Mitchell intended to cause harmful or offensive contact with Plaintiff. Sysco’s evidence shows that Mitchell was operating his vehicle within his lane of travel at a safe and reasonable speed. (UMF 22-23, 27) There is no evidence that he drove toward Plaintiff, deviated from the lane, or took any action aimed at causing contact with Plaintiff. (UMF 22, 27) Mitchell was not aware of any hazardous condition involving the tree branch prior to the incident and did not observe any condition that could be safely avoided. (UMF 26, 30-31) Plaintiff argues that the driver had prior knowledge of tree limbs hitting his truck on Redding’s streets, and that the evidence shows that the truck was intentionally driven through the area where low-hanging branches were known to exist. Plaintiff argues, without citation to authority, that the doctrine of “transferred intent” applies to this case. Under this doctrine, if a person acts with the intent to make a wrongful contact with or cause apprehension of contact with one person, but instead inadvertently or accidentally makes contact with a third person, the actor is civilly liable for battery to the third person *Singer v. Marx* (1956) 144 Cal. App. 2d 637. The Court finds that the doctrine of transferred intent does not apply here. Plaintiff has not identified any third person involved in the incident.

Additionally, the intent to drive a truck through Redding’s streets is not the intent required here. Plaintiff must show the driver proceeded down the street intending those consequences which (a) represent the very purpose for which an act is done, i.e. meaning to hit the Plaintiff by dislodging the tree branch, or (b) are known to be substantially certain to result, i.e. knowing that the dislodging of a branch was substantially certain to result by driving down the street. Plaintiff presents no evidence that the driver perceived either the Plaintiff or the low hanging branch prior to the incident, and no evidence that the driver acted with willful disregard for the Plaintiff. Therefore, summary adjudication as to the Fourth Cause of Action for Battery against Sysco is **GRANTED**.

Sysco’s Motion for Summary Judgement is **DENIED**. The alternative relief requested for Summary Adjudication is **DENIED** as to Issues 1 and 2 and **GRANTED** as to Issue 3. The Court has reviewed the proposed order submitted with this Motion and finds that it is not tailored to the causes of action at issue. Sysco is directed to submit a proposed order consistent with this tentative ruling.

LVNV FUNDING LLC VS. RIDGWAY

CASE NUMBER: 26CVG-00166

Tentative Ruling on Motion for Order Deeming Request for Admissions Admitted: Plaintiff LVNV Funding, LLC. seeks an order deeming the truth of the matters specified in Plaintiff’s Requests for Admission, Set One admitted by Defendant Shannon Ridgway. Despite being timely noticed with the motion, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff’s moving

papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c). Plaintiff seeks \$810 in monetary sanctions which is comprised of one hour already spent and two anticipated hours at the rate of \$250 per hour plus the \$60 filing fee. The Court finds the hourly rate to be reasonable and awards one hour for time already spent. Given that there is no Opposition, one additional hour will be awarded if Plaintiff's counsel attends the hearing. The \$60 motion filing fee is awarded.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Sanctions will be awarded in either the amount of \$310 or \$560 depending on whether Plaintiff's counsel attends the hearing. Plaintiff provided a proposed Order, however, the contents of the Requests for Admission are not included. Plaintiff will need to submit a proposed Order that includes the text of the Requests for Admission being deemed admitted.

IN RE: MCKINNON

CASE NUMBER: 26CV-0210719

Tentative Ruling on Petition for Change of Name: Petitioner Wendy Marie McKinnon aka Wendy Marie Parten aka Wendy Marie Rogers aka Wynda Marie Rogers seeks to change her name to Wendy Marie McKinnon. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied. There is a discrepancy between the Order to Show Cause and the Decree Changing Name. The name Wynda Marie Rogers is listed in the Decree, but not the Order to Show Cause. An appearance will be necessary to confirm with Petitioner what names should be listed in the Decree Changing Name. Once clarified, the Court intends to **GRANT** the Petition. All future dates will be vacated and the file closed upon the processing of the Decree Changing Name.

SYNCHRONY BANK VS. CLIFTON

CASE NUMBER: 24CVG-01822

Tentative Ruling on Order to Show Cause Re: Dismissal: An Order to Show Cause Re: Dismissal issued on June 23, 2026 for Plaintiff's failure to timely seek entry of default and failure to timely prosecute. This is a collections case filed on December 9, 2024. CRC 3.740(f) provides that a plaintiff must obtain a default judgment within 360 days of filing the complaint. Plaintiff filed a response that provides an inadequate excuse for the delay. Per counsel, the matter settled in April of 2025. There is no valid reason that Plaintiff has not yet filed a Notice of Settlement. Counsel stated that the payment plan will be complete in November of 2026. Given how close in time that is, the Court will continue hearing on the Order to Show Cause to **Monday, December 14, 2026 at 8:30 a.m. in Department 63**. If Plaintiff has not obtained a default judgment or dismissed the case by December 14, 2026, the Court will dismiss the matter without prejudice pursuant to Gov. Code § 68608(b). **No appearance is necessary on today's calendar.**

THE PEOPLE OF THE STATE OF CALIFORNIA, ET AL. VS. COUNTY OF SHASTA, ET AL.

CASE NUMBER: 26CV-0211092

Tentative Ruling on Motion for Leave to File Amicus Brief in Support of Petitioners: Several advocacy organizations including Asian Americans Advancing Justice, Southern California, Asian Law Caucus, Disability Rights California, League of Women Voters of California Education Fund, League of Women Voters of Redding Area, ACLU of Northern California, ACLU of Southern California, and ACLU of San Diego & Imperial Counties seek leave to file an amicus brief in this matter. The motion is opposed by Real Parties in Interest (RPI) Jim Burnett, Kari Chilson, Richard Gallardo, Laura Hobbs, and Diedre Holliday. Petitioners The People of the State of California, ex rel, Rob Bonta, Attorney General of the State of California, and Shirley N. Weber PH.D., in her